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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

NICHOLAS A. VENTURA,

Plaintiff,

vs.

RANDSTAD US, LLC; RANDSTAD NORTH AMERICA, INC.; and HIREWELL, LLC,

Defendants.

Case No. 5:25-cv-02931-SRM-DTB

Hon. Serena R. Murillo

DEFENDANTS RANDSTAD US, LLC'S AND RANDSTAD NORTH AMERICA, INC.'S ANSWER AND AFFIRMATIVE DEFENSES TO PLAINTIFF'S FIRST AMENDED COMPLAINT

Complaint filed: September 25, 2025
FAC Filed: May 21, 2026
Trial Date: Not Set

Defendants Randstad US, LLC and Randstad North America, Inc. (collectively, "Randstad"), by and through their undersigned counsel, hereby submit their Answer and Affirmative Defenses to the First Amended Complaint ("FAC") of Plaintiff Nicholas A. Ventura ("Plaintiff") (Dkt. 62), as follows.

For the Court's convenience, Randstad has incorporated the section headings that appear in the FAC. Randstad does not admit, and expressly denies, any characterization contained in those headings, and does not waive any objection to them. Except as expressly admitted herein, Randstad denies each and every allegation of the FAC, and denies that Plaintiff has been damaged, or is entitled to any relief, by reason of any act or omission of Randstad.

I. INTRODUCTION

1. Randstad denies the allegations in paragraph 1 of the FAC, including any allegation that Randstad is liable under principles of apparent authority, negligent supervision, ratification, or the Racketeer Influenced and Corrupt Organizations Act. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations concerning the unidentified "Fraudulent Actors" and, therefore, denies them.

2. Randstad denies the allegations in paragraph 2 of the FAC as directed to Randstad. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations concerning the acts of the "Fraudulent Actors" and, therefore, denies them.

3. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 3 of the FAC concerning the nature and amount of Plaintiff's claimed losses and, therefore, denies them. Randstad denies that Plaintiff is entitled to recover any damages, treble damages, punitive damages, or any other relief from Randstad.

II. JURISDICTION AND VENUE

4. The allegations in paragraph 4 of the FAC state legal conclusions to which no response is required. To the extent a response is required, Randstad admits only that the FAC purports to invoke this Court's subject-matter jurisdiction under 28 U.S.C. § 1331 and supplemental jurisdiction under 28 U.S.C. § 1367. Randstad denies that Plaintiff has stated any valid federal claim against Randstad, and denies the remaining allegations in paragraph 4 of the FAC.

5. The allegations in paragraph 5 of the FAC state legal conclusions to which no response is required. To the extent a response is required, Randstad admits that venue is proper in this District. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations concerning Plaintiff's receipt of communications, wire transfers, and account activity and, therefore, denies them. Randstad denies the remaining allegations in paragraph 5 of the FAC.

III. PARTIES

6. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 6 of the FAC concerning Plaintiff, his residence, his employment history, and his job-search activities and, therefore, denies them.

7. Randstad admits that Randstad US, LLC is a Delaware limited liability company with its principal place of business in Atlanta, Georgia; that Randstad US, LLC is a subsidiary of Randstad N.V.; that Randstad US, LLC is among the larger staffing and recruiting firms operating in the United States; and that it offers recruiting services in the life sciences sector. Except as expressly admitted herein, Randstad denies the allegations in paragraph 7 of the FAC, including the characterization of its annual revenues.

8. Randstad admits that Randstad North America, Inc. is a Delaware corporation with its principal place of business in Atlanta, Georgia, and is an affiliated entity of Randstad US, LLC. Randstad admits that Randstad US, LLC and Randstad North

America, Inc. are referred to collectively herein as "Randstad." Except as expressly admitted herein, Randstad denies the allegations in paragraph 8 of the FAC.

9. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 9 of the FAC concerning Defendant Hirewell, LLC, its corporate status, and the service of process upon it and, therefore, denies them. Randstad denies any legal conclusion that Hirewell is in default, and denies the allegations in paragraph 9 to the extent they purport to concern Randstad.

10. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 10 of the FAC concerning the identity, aliases, telephone numbers, carriers, and locations of the "Fraudulent Actors" and the "Suspect List" and, therefore, denies them.

IV. FACTUAL ALLEGATIONS

A. Plaintiff's Background and Vulnerability

11. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 11 of the FAC concerning Plaintiff's background, employment status, financial condition, and job-search activities and, therefore, denies them.

12. Randstad denies the allegations in paragraph 12 of the FAC, including any allegation that fraudulent schemes operated under the apparent authority of Randstad. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations concerning Plaintiff's personal circumstances and, therefore, denies them.

B. Initial Contact — April 13, 2024 (Randstad Apparent Authority)

13. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 13 of the FAC concerning communications between Plaintiff and the person identifying herself as "Annie" and, therefore, denies them. Randstad denies that "Annie" or any "Fraudulent Actor" was employed by, contracted with, affiliated with, or otherwise authorized to represent Randstad.

14. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 14 of the FAC concerning the content of any message Plaintiff received and, therefore, denies them. Randstad denies that any such communication was authorized by, sent by, or attributable to Randstad.

15. Randstad admits that no individual named "Emilia Clare" was employed by Randstad, that the person identifying herself as "Annie" was not employed by, contracted with, or otherwise authorized to represent Randstad, and that no legitimate Randstad job posting served as the basis for the contact alleged. Randstad denies that it made or authorized any representation to Plaintiff, denies that it clothed any person with apparent authority, and, except as expressly admitted herein, denies the allegations in paragraph 15 of the FAC.

16. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 16 of the FAC concerning the representations made to Plaintiff regarding "Kurve," compensation, or cryptocurrency and, therefore, denies them. Randstad denies that any such representation was made or authorized by Randstad.

17. The allegations in paragraph 17 of the FAC state legal conclusions to which no response is required. To the extent a response is required, Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations concerning the transmission of any URL, invitation code, or platform registration and, therefore, denies them. Randstad denies that it engaged in, authorized, or is responsible for any such transmission.

C. The Hirewell Apparent Authority — April 15, 2024

18. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 18 of the FAC concerning communications between Plaintiff and the person identifying herself as "Cynthia" and, therefore, denies them.

19. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 19 of the FAC concerning the content of any message Plaintiff received and, therefore, denies them.

20. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 20 of the FAC concerning Defendant Hirewell and, therefore, denies them. Randstad denies the allegations in paragraph 20 to the extent they purport to concern Randstad.

21. Randstad admits that Plaintiff alleges the "Fraudulent Actors" invoked the names of multiple recruiting firms, including Randstad, and that the actors misappropriated the name of Randstad without authorization. Randstad denies that it participated in, coordinated, or was a member of any "coordinated enterprise," and, except as expressly admitted herein, denies the allegations in paragraph 21 of the FAC.

D. The Training Phase and Access Device Creation

22. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 22 of the FAC concerning the "training" phase, platform registration, and creation of credentials and, therefore, denies them. Randstad denies any involvement in the conduct alleged.

23. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 23 of the FAC concerning the "combination task" and related representations and, therefore, denies them. Randstad denies any involvement in the conduct alleged.

E. The Trapping Phase — Initial Deposits and Asset Liquidation

24. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 24 of the FAC concerning Plaintiff's deposits and, therefore, denies them. Randstad denies any involvement in the conduct alleged.

25. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 25 of the FAC concerning Plaintiff's

liquidation of personal assets and further deposits and, therefore, denies them. Randstad denies any involvement in the conduct alleged and denies that any "predicate wire fraud act" is attributable to Randstad.

F. Escalation — Interstate Bank Wires and Catastrophic Loss

26. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 26 of the FAC concerning Plaintiff's account activity and wire transfers and, therefore, denies them. Randstad denies any involvement in the conduct alleged.

27. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 27 of the FAC concerning Plaintiff's wire transfers and cryptocurrency purchases and, therefore, denies them. Randstad denies any involvement in the conduct alleged.

28. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 28 of the FAC concerning the "claimed balance," withdrawal demands, and any "exit-prevention mechanism" and, therefore, denies them. Randstad denies any involvement in the conduct alleged.

29. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 29 of the FAC concerning Plaintiff's loan and final wire transfer and, therefore, denies them. Randstad denies any involvement in the conduct alleged.

30. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 30 of the FAC concerning the amount of Plaintiff's transfers and total claimed loss and, therefore, denies them. Randstad denies that any loss is attributable to any act or omission of Randstad.

G. Aggravating Conduct — Exploitation of Suicidal Ideation

31. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 31 of the FAC concerning communications between Plaintiff and the "Annie Actor" and, therefore, denies them. Randstad denies

any involvement in the conduct alleged and denies that any basis for punitive damages exists against Randstad.

H. Enterprise Architecture and Pattern

32. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 32 of the FAC concerning the structure and operations of the alleged "association-in-fact enterprise" and, therefore, denies them. Randstad denies that it was a member of, participated in, or conducted the affairs of any such enterprise.

33. The allegations in paragraph 33 of the FAC state legal conclusions to which no response is required. To the extent a response is required, Randstad denies that any "pattern of racketeering activity" satisfies the relatedness or continuity requirements as to Randstad, and is without information or knowledge sufficient to form a belief as to the truth of the allegations concerning the conduct of the "Fraudulent Actors" and, therefore, denies them.

I. Manifestations Supporting Apparent Authority

34. Randstad denies the allegations in paragraph 34 of the FAC, including the allegation that Randstad supplied any manifestation upon which Plaintiff reasonably relied in believing that the "Fraudulent Actors" were authorized agents of Randstad.

35. Randstad denies the allegations in paragraph 35 of the FAC, including the allegation that Randstad failed to implement reasonable measures. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations concerning third-party warnings and, therefore, denies them.

J. Damages

36. Randstad denies that Plaintiff suffered any injury or damage as a result of any act or omission of Randstad. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 36 of the FAC concerning the nature and amount of Plaintiff's claimed damages and, therefore, denies them.

V. FIRST CAUSE OF ACTION

Wire Fraud — 18 U.S.C. § 1343 (Against All Defendants)

37. Randstad incorporates its responses to paragraphs 1 through 36 of the FAC as though fully set forth herein.

38. Randstad denies the allegations in paragraph 38 of the FAC, including the allegation that any "Fraudulent Actor" acted under the apparent authority of Randstad or that any scheme to defraud is attributable to Randstad.

39. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 39 of the FAC concerning the wire communications transmitted by the "Fraudulent Actors" and, therefore, denies them. Randstad denies that any such transmission was made, caused, or authorized by Randstad, and denies that any "predicate wire fraud act" is attributable to Randstad.

40. Randstad denies the allegations in paragraph 40 of the FAC as directed to Randstad and denies that it committed or is liable for any access device fraud, identity theft, theft by false pretenses, or grand theft.

41. Randstad denies the allegations in paragraph 41 of the FAC, including the allegations that Randstad is liable under principles of apparent authority or ratification and that Plaintiff reasonably relied upon any manifestation of Randstad.

42. Randstad denies the allegations in paragraph 42 of the FAC and denies that Plaintiff suffered any damages as a result of any act or omission of Randstad.

VI. SECOND CAUSE OF ACTION

Civil RICO — 18 U.S.C. § 1962(c) (Against All Defendants)

43. Randstad incorporates its responses to paragraphs 1 through 36 and 38 through 42 of the FAC as though fully set forth herein.

44. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 44 of the FAC concerning the alleged "Recruiter-Impersonation Enterprise" and its structure and, therefore, denies them. Randstad denies that it was part of, or participated in the conduct of, any enterprise.

45. Randstad denies the allegations in paragraph 45 of the FAC, including the allegation that Randstad participated, directly or indirectly, in the operation or management of the affairs of any enterprise, or that it supplied any "brand-authority infrastructure," ratified any conduct, or benefitted from the alleged scheme.

46. Randstad denies the allegations in paragraph 46 of the FAC, including the allegations that Plaintiff was injured by reason of any violation of 18 U.S.C. § 1962(c) attributable to Randstad and that any injury was directly or proximately caused by Randstad.

47. Randstad denies the allegations in paragraph 47 of the FAC, and denies that Plaintiff is entitled to recover treble damages, costs, or attorney's fees from Randstad.

48. The FAC contains no paragraph 48. To the extent the FAC is deemed to contain any allegation designated as paragraph 48, Randstad denies it.

VII. THIRD CAUSE OF ACTION

RICO Conspiracy — 18 U.S.C. § 1962(d) (Against All Defendants)

49. Randstad incorporates its responses to paragraphs 1 through 36 and 44 through 47 of the FAC as though fully set forth herein.

50. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations in paragraph 50 of the FAC concerning any agreement or conspiracy among the "Fraudulent Actors" and other unidentified participants and, therefore, denies them. Randstad denies that it entered into or participated in any conspiracy.

51. Randstad denies the allegations in paragraph 51 of the FAC, including the allegations that Randstad is liable for the acts of any co-conspirator under principles of apparent authority or through any knowing failure to act.

VIII. FOURTH CAUSE OF ACTION

Unregistered Securities Solicitation — Cal. Corp. Code § 25401 (Against All Defendants)

52. Randstad incorporates its responses to paragraphs 1 through 36 of the FAC as though fully set forth herein.

53. The allegations in paragraph 53 of the FAC state legal conclusions to which no response is required. To the extent a response is required, Randstad denies them as directed to Randstad, including that any "investment" interest was offered by any agent of Randstad. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations concerning the Kurve.fun and Near.eco platforms and, therefore, denies them.

54. Randstad denies the allegations in paragraph 54 of the FAC, and specifically denies that Randstad or any authorized agent of Randstad offered or sold any security, made any communication to Plaintiff, or made any untrue statement or omission of material fact.

55. Randstad denies the allegations in paragraph 55 of the FAC, including the allegations that Randstad is liable as a participant in, or as a principal whose apparent authority enabled, any unregistered offer or sale, and denies that Plaintiff is entitled to any relief under California Corporations Code § 25501.

IX. FIFTH CAUSE OF ACTION

Common Law Fraud — Cal. Civ. Code §§ 1709, 1710 (Against All Defendants)

56. Randstad incorporates its responses to paragraphs 1 through 36 of the FAC as though fully set forth herein.

57. Randstad denies the allegations in paragraph 57 of the FAC, including the allegations that any false representation was made under Randstad's apparent authority and that Plaintiff justifiably relied on Randstad.

58. Randstad denies the allegations in paragraph 58 of the FAC, including the allegations that Randstad had or breached any duty to disclose and that Randstad committed constructive fraud or fraudulent concealment.

59. Randstad denies the allegations in paragraph 59 of the FAC, and denies that Plaintiff is entitled to general, special, exemplary, or punitive damages from Randstad.

X. SIXTH CAUSE OF ACTION

Negligent Supervision and Brand Protection (Against Defendants Randstad and Hirewell)

60. Randstad incorporates its responses to paragraphs 1 through 36 of the FAC as though fully set forth herein.

61. Randstad denies the allegations in paragraph 61 of the FAC, including the allegation that Randstad owed any duty of care to Plaintiff or to members of the public who receive communications purporting to originate from Randstad's personnel.

62. Randstad denies the allegations in paragraph 62 of the FAC, including the allegation that Randstad knew or should have known that bad actors were impersonating its personnel to defraud Plaintiff.

63. Randstad denies the allegations in paragraph 63 of the FAC, including the allegation that Randstad breached any duty of care or failed to implement or maintain reasonable measures.

64. Randstad denies the allegations in paragraph 64 of the FAC, and denies that Plaintiff suffered any damages as a result of any negligence of Randstad.

XI. SEVENTH CAUSE OF ACTION

Civil Conspiracy (Against All Defendants)

65. Randstad incorporates its responses to paragraphs 1 through 36 of the FAC as though fully set forth herein.

66. Randstad denies the allegations in paragraph 66 of the FAC, including the allegations that Randstad entered into any agreement to commit any wrongful act, that

Randstad acquired actual or constructive knowledge of the alleged scheme, and that Randstad ratified any unlawful conduct or is a joint participant in any conspiracy.

67. Randstad denies the allegations in paragraph 67 of the FAC, and denies that Plaintiff suffered any damages, or that Randstad is jointly or severally liable for any damages, as a result of any conspiracy.

XII. EIGHTH CAUSE OF ACTION

Unfair Competition — Cal. Bus. & Prof. Code § 17200 (Against Defendants Randstad and Hirewell)

68. Randstad incorporates its responses to paragraphs 1 through 36 of the FAC as though fully set forth herein.

69. Randstad denies the allegations in paragraph 69 of the FAC as directed to Randstad, including the allegation that Plaintiff's reliance on Randstad's brand identity was foreseeable or exploited. Randstad is without information or knowledge sufficient to form a belief as to the truth of the allegations concerning Plaintiff's employment history and job-search activities and, therefore, denies them.

70. Randstad denies the allegations in paragraph 70 of the FAC, including the allegations that Randstad's conduct constitutes any unlawful, unfair, or fraudulent business practice within the meaning of California Business and Professions Code § 17200.

71. Randstad denies the allegations in paragraph 71 of the FAC, and denies that Plaintiff suffered any injury in fact or lost money or property as a result of any act of Randstad, and denies that Plaintiff is entitled to restitution, disgorgement, or injunctive relief.

RESPONSE TO UNENUMERATED AND COVER-PAGE CLAIMS

To the extent the cover page of the FAC purports to assert claims not pleaded in the body of the FAC — including Access Device Fraud (18 U.S.C. § 1029), Money Laundering (18 U.S.C. §§ 1956 and 1957), "Pig-Butchering Emotional Manipulation and Economic Devastation After Intervention," and Misrepresentation of Job

Opportunity (including Cal. Penal Code § 532) — Randstad denies each such allegation and denies that any such theory states a claim against Randstad or is supported by any private right of action.

RESPONSE TO PLAINTIFF'S PRAYER FOR RELIEF

Randstad denies that Plaintiff is entitled to the relief requested in the FAC's Prayer for Relief, including each of subparagraphs 1 through 11, and denies that Plaintiff is entitled to any relief whatsoever from Randstad.

RESPONSE TO PLAINTIFF'S DEMAND FOR JURY TRIAL

Randstad denies that any of the allegations of the FAC state triable issues against Randstad. Plaintiff's demand for a jury trial states a request to which no response is required.

GENERAL DENIAL

Randstad denies each and every allegation set forth in the FAC that is not specifically admitted herein.

AFFIRMATIVE DEFENSES

Randstad asserts the following separate and additional defenses to the FAC. By asserting these defenses, Randstad does not admit that it bears the burden of proof or the burden of persuasion with respect to any particular defense and does not concede that any matter set forth below is properly characterized as an affirmative defense.

FIRST AFFIRMATIVE DEFENSE

(Failure to State a Claim)

The FAC, and each purported cause of action alleged therein, fails to state a claim upon which relief may be granted against Randstad. For example, Plaintiff admits that the "Fraudulent Actors" were not authorized to represent Randstad and does not allege that Randstad knew of, controlled, or participated in the alleged scheme.

SECOND AFFIRMATIVE DEFENSE

(Failure to Plead Fraud with Particularity)

Plaintiff's fraud-based claims are barred, in whole or in part, because they are not pleaded with the particularity required by Federal Rule of Civil Procedure 9(b). For example, Plaintiff improperly lumps the defendants together without specifying the role of each in the alleged fraud.

THIRD AFFIRMATIVE DEFENSE

(No Agency / No Apparent Authority)

Plaintiff's claims are barred because the "Fraudulent Actors" were not agents of Randstad and had no actual or apparent authority to act on Randstad's behalf. Any apparent authority must be founded upon the manifestations of Randstad as the alleged principal, and not upon the acts, statements, or conduct of the "Fraudulent Actors" themselves. Randstad made no manifestation, and took no affirmative act, that could reasonably have led Plaintiff to believe the "Fraudulent Actors" were its authorized agents, and Plaintiff admits the actors were not authorized to represent Randstad.

FOURTH AFFIRMATIVE DEFENSE

(No Ratification)

Plaintiff's claims are barred because Randstad did not ratify any act of the "Fraudulent Actors" and had no knowledge of the material facts of the alleged scheme against Plaintiff.

FIFTH AFFIRMATIVE DEFENSE

(No Reliance / No Justifiable Reliance)

Plaintiff's fraud and misrepresentation claims are barred because Randstad made no representation to Plaintiff, and Plaintiff did not and could not have justifiably relied on any representation by Randstad.

SIXTH AFFIRMATIVE DEFENSE

(Failure of RICO Elements)

Plaintiff cannot establish, as to Randstad, a RICO enterprise, participation in the

operation or management of any enterprise, the commission of any predicate act, a pattern of racketeering activity, or proximate causation, and his claims under 18 U.S.C. §§ 1962(c) and 1962(d) therefore fail.

SEVENTH AFFIRMATIVE DEFENSE

(Intervening and Superseding Cause)

Any injury or damage alleged by Plaintiff was caused by the intervening and superseding criminal acts of unidentified third parties over whom Randstad had no control and for whom Randstad is not responsible.

EIGHTH AFFIRMATIVE DEFENSE

(Lack of Causation)

Plaintiff's claims are barred because no act or omission of Randstad was the actual or proximate cause of any injury or damage alleged by Plaintiff.

NINTH AFFIRMATIVE DEFENSE

(No Duty)

Plaintiff's negligent supervision and brand protection claim, and any other claim premised on an alleged duty, fails because Randstad owed no legal duty to Plaintiff or to the public at large and had no special relationship with Plaintiff or the "Fraudulent Actors." Absent such a special relationship, Randstad had no duty to control the conduct of the "Fraudulent Actors" or other third parties, and no duty to protect Plaintiff or the public at large from their criminal acts.

TENTH AFFIRMATIVE DEFENSE

(Comparative Fault)

Plaintiff's recovery on his Sixth Cause of Action for negligent supervision and brand protection, if any, must be reduced or barred in proportion to Plaintiff's own negligence and comparative fault, including Plaintiff's decision to continue transferring funds after multiple red flags, and after his own bank flagged and froze a transaction as suspected fraud. Comparative and contributory fault are defenses only

to claims grounded in negligence and do not apply to Plaintiff's claims requiring intentional conduct.

ELEVENTH AFFIRMATIVE DEFENSE

(Failure to Mitigate Damages)

Plaintiff's recovery, if any, is barred or must be reduced because Plaintiff failed to take reasonable steps to mitigate his alleged damages, including by continuing to liquidate personal assets, take out loans, and complete wire transfers after warning signs and after his own bank flagged and froze a transaction as suspected fraud.

TWELFTH AFFIRMATIVE DEFENSE

(Statute of Limitations)

Plaintiff's claims are barred, in whole or in part, by the applicable statutes of limitations to the extent discovery reveals that any claim accrued outside the applicable limitations period.

THIRTEENTH AFFIRMATIVE DEFENSE

(Lack of Standing)

Plaintiff lacks standing to assert some or all of the claims alleged and to seek some or all of the forms of relief requested.

FOURTEENTH AFFIRMATIVE DEFENSE

(No Private Right of Action)

Plaintiff's claims premised on criminal statutes that do not provide a private civil right of action — including without limitation 18 U.S.C. §§ 1028, 1028A, 1029, 1343, 1956, and 1957, and California Penal Code §§ 484, 487, 530.5, and 532 — fail as a matter of law.

FIFTEENTH AFFIRMATIVE DEFENSE

(Economic Loss Doctrine)

Plaintiff's negligent supervision and brand protection claim is barred, in whole or in part, by the economic loss doctrine to the extent it seeks purely economic damages absent an independent duty.

SIXTEENTH AFFIRMATIVE DEFENSE

(Failure of Securities Claim)

Plaintiff's claim under California Corporations Code § 25401 fails because Randstad did not offer or sell any security, did not engage in any written or oral communication with Plaintiff, and did not make any untrue statement or omission of material fact. Randstad is further not secondarily liable as a controlling person, officer, director, agent, employee, or material aider under California Corporations Code §§ 25504 and 25504.1, and no primary violation by any seller in privity with Plaintiff is alleged.

SEVENTEENTH AFFIRMATIVE DEFENSE

(Failure of Conspiracy Claims)

Plaintiff's civil conspiracy and RICO conspiracy claims fail because Randstad did not agree with any person to commit any unlawful act, and because there is no underlying tort or predicate act attributable to Randstad.

EIGHTEENTH AFFIRMATIVE DEFENSE

(Unfair Competition — Standing and Remedies)

Plaintiff's claim under California Business and Professions Code § 17200 is barred, in whole or in part, because Plaintiff lacks an adequate basis for restitution, seeks nonrestitutionary relief that is unavailable, and cannot establish injury in fact caused by Randstad.

NINETEENTH AFFIRMATIVE DEFENSE

(Speculative and Unrecoverable Damages)

Plaintiff's damages, if any, are speculative, uncertain, and/or not recoverable as a matter of law.

TWENTIETH AFFIRMATIVE DEFENSE

(Limitations on Punitive, Exemplary, and Treble Damages)

Any claim for punitive, exemplary, or treble damages is barred or limited by the United States and California Constitutions and by applicable statutory and common-law constraints.

TWENTY-FIRST AFFIRMATIVE DEFENSE

(Setoff and Offset)

Any recovery by Plaintiff must be reduced or offset by amounts Plaintiff has received or is entitled to recover from others on account of the losses alleged, including any amounts recovered from the "Fraudulent Actors," the cryptocurrency or other platforms involved, Plaintiff's financial institutions, or through law-enforcement restitution.

TWENTY-SECOND AFFIRMATIVE DEFENSE

(Unclean Hands, Waiver, and Estoppel)

Plaintiff's claims are barred, in whole or in part, by the doctrines of unclean hands, waiver, and/or estoppel, including because Plaintiff knowingly transferred funds to unverified cryptocurrency platforms despite warnings and after his own bank flagged and froze a transaction as suspected fraud.

TWENTY-THIRD AFFIRMATIVE DEFENSE

(Consent, Assumption of Risk, and Voluntary Payment)

Plaintiff's claims are barred, in whole or in part, by the doctrines of consent, assumption of risk, and/or voluntary payment, including because Plaintiff voluntarily and knowingly transferred funds to unverified cryptocurrency platforms despite warnings and after his own bank flagged and froze a transaction as suspected fraud.

TWENTY-FOURTH AFFIRMATIVE DEFENSE

(Adequate Remedy at Law)

Plaintiff's requests for equitable relief are barred by the availability of an adequate remedy at law and by the balance of the equities.

TWENTY-FIFTH AFFIRMATIVE DEFENSE

(Attorney's Fees and Costs Not Recoverable)

To the extent Plaintiff seeks attorney's fees or costs, such recovery is barred absent an applicable contract or statute authorizing it and because Plaintiff is not represented by counsel.

TWENTY-SIXTH AFFIRMATIVE DEFENSE

(Reservation of Right to Assert Further Defenses)

Randstad has not knowingly or intentionally waived any applicable defense and gives notice that it intends to rely on such other and further affirmative defenses as may become available or apparent during discovery. Randstad reserves the right to amend its Answer to assert any such defense.

PRAYER FOR RELIEF

WHEREFORE, Randstad prays for judgment as follows:

1. That Plaintiff take nothing by the FAC and that the FAC be dismissed in its entirety, with prejudice, as to Randstad;

2. That judgment be entered in favor of Randstad and against Plaintiff on all claims;

3. That the Court award Randstad its costs of suit, including reasonable attorney's fees to the extent authorized by law; and

4. For such other and further relief as the Court deems just and proper.

Dated: August 21, 2026

KABAT CHAPMAN & OZMER LLP

By: *s/ Nathan D. Chapman*
Nathan D. Chapman

Attorneys for Defendants Randstad US, LLC and Randstad North America, Inc.

PROOF OF SERVICE

U.S. DISTRICT COURT, CENTRAL DISTRICT OF CALIFORNIA

I am employed in the County of Los Angeles, State of California; I am over the age of 18 and not a party to the within action; my business address is 707 Wilshire Blvd, Suite 4800, Los Angeles, CA 90017.

On August 21, 2026, I served the foregoing document(s) described as **DEFENDANTS RANDSTAD US, LLC'S AND RANDSTAD NORTH AMERICA, INC.'S ANSWER AND AFFIRMATIVE DEFENSES TO PLAINTIFF'S FIRST AMENDED COMPLAINT** on the interested parties to this action by delivering a copy thereof addressed to each of said interested parties at the following address(es): SEE ATTACHED.

☐ **(BY MAIL)** I am readily familiar with the business practice for collection and processing of correspondence for mailing with the United States Postal Service. This correspondence shall be deposited with the United States Postal Service this same day in the ordinary course of business at our Firm's office address. Service made pursuant to this paragraph, upon motion of a party served, shall be presumed invalid if the postal cancellation date of postage meter date on the envelope is more than one day after the date of deposit for mailing contained in this affidavit.

☒ **(BY ELECTRONIC SERVICE)** by causing the foregoing document(s) to be electronically filed using the Court's Electronic Filing System which constitutes service of the filed document(s) on the individual(s) listed on the attached mailing list.

☒ (Federal) I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made. I declare under penalty of perjury under the laws of the United States that the above is true and correct.

Executed on August 21, 2026, at Los Angeles, California.

s/ Windy Thor
Windy Thor

SERVICE LIST

Nicholas A Ventura
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